

Right to Information Act, 2007

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Right to Information Act, 2064 (2008)".

(2) This Act shall come into force on the thirtieth day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Public agency" means the following bodies or institutions:?

(1) Bodies under the Constitution,

(2) Bodies established by an Act,

(3) Bodies formed by the Government of Nepal,

Added by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018).(3a) Offices of the Provincial Government or bodies formed by the Provincial Government,

Added by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018).(3b) Local level or its offices,

(4) Public service providing organized institutions or establishments established by law,

(5) Political parties and organizations registered pursuant to the prevailing law,

(6) Organized institutions wholly or partially owned or controlled by, or operating on grants from, or receiving grants from the Government of Nepal,

(7) Organized institutions formed through an agreement by the Government of Nepal or a body established by law,

(8) Non-governmental associations/institutions operating with funds received directly or indirectly from the Government of Nepal or a foreign state or an international association/institution,

Added by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018).(8a) Organized institutions wholly or partially owned or controlled by, or operating on grants from, or receiving grants from the Provincial Government,

Added by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018).(8b) Organized institutions formed through an agreement by the Provincial Government or a body established by law,

Added by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018).(8c) Non-governmental associations and institutions operating with funds received directly or indirectly from the Provincial Government,

(9) Other bodies or institutions designated as public agencies by the Government of Nepal by publishing a notice in the Nepal Gazette.

(b) "Information" means any writing, material, or knowledge related to the work of public importance performed or being performed by a public agency, or related proceedings or decisions thereof.

(c) "Public importance" means a matter of public concern.

(d) "Writing" means any kind of document in written form, and the term also denotes audio-visual material collected or updated by means of any device, or which can be printed or reproduced.

(e) "Right to information" means the right to request and receive information of public importance held in a public agency, and the term also includes the right to study or observe any writing, material, or work proceedings of that agency, to obtain a certified copy of such writing, to visit and observe the site where construction work of public importance is being carried out, to take a certified sample of any material, or to receive information stored in any kind of device through such device.

(f) "Information officer" means a person designated pursuant to Section 6.

(g) "Chief" means the chief of a public agency.

(h) "Commission" means the National Information Commission pursuant to Section 11.

(i) "Chief Information Commissioner" means a person appointed pursuant to Section 11.

(j) "Information Commissioner" means a person appointed pursuant to Section 11.

(k) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter-2

Provisions Relating to Right to Information and Flow of Information

3. Right to Information: (1) Every Nepali citizen shall have the right to information, subject to this Act.

(2) Every Nepali citizen shall have access to information held in a public agency.

(3) Notwithstanding anything contained in sub-sections (1) and (2), information relating to the following subjects held in a public agency shall not be disclosed:?

(a) Information that seriously jeopardizes the sovereignty, integrity, national security, public peace and order, or international relations of Nepal,

(b) Information that directly affects the investigation, inquiry, and prosecution of an offence,

(c) Information that seriously impairs economic, commercial, or monetary interests or the protection of intellectual property or banking or trade secrecy,

(d) Information that directly disturbs harmonious relations between various castes or communities,

(e) Information that endangers personal privacy and the life, body, property, health, or security of an individual. Provided that the public agency shall not be absolved of its obligation to disclose such information unless there is a reasonable and sufficient reason not to disclose information accordingly.

(4) If the records of a public agency contain information that can be disclosed and information that cannot be disclosed under this Act, the information officer shall separate the information that can be disclosed and

make it available to the applicant. 4. Duties of a Public Agency: (1) Every public agency shall respect and protect the right to information of citizens.

(2) For the purpose of sub-section (1), it shall be the duty of a public agency to perform the following works:??

(a) To classify and update information and make it public, publish, and disseminate it from time to time,

(b) To simplify and facilitate citizens' access to information,

(c) To conduct its work proceedings in an open and transparent manner,

(d) To make arrangements for appropriate training and instruction for its employees.

(3) While making information public, publishing, or disseminating it pursuant to clause (a) of sub-section (2), the public agency may do so through various national languages and means of mass communication. 5.

Updating and Publication of Information: (1) A public agency shall keep information relating to its agency updated. (2) A public agency shall, as far as possible, cause to update information relating to its agency up to at least twenty years before the commencement of this Act, pursuant to sub-section (1). (3) A public agency shall list and publish the following information relating to that agency: (a) The form and nature of the agency, (b) The functions, duties, and powers of the agency, (c) The number of employees and job descriptions in the agency, (d) Services provided by the agency, (e) The branch of the agency providing services and the responsible officer, (f) The fees to be charged and the duration for receiving services, (g) The decision-making process and the officer, (h) The officer who hears complaints against decisions, (i) The details of work performed, (j) The name and position of the information officer and the chief, (k) A list of Acts, rules, regulations, or directives, (l) Updated details of income, expenditure, and financial transactions, (m) Other details as prescribed. (4) The public agency shall update and publish the information pursuant to sub-section (3) within three months from the date of commencement of this Act and thereafter every three months. 6. Provision for Information Officer: (1) A public agency shall make provision for an Information Officer for the purpose of disclosing information in its office. (2) For the purpose of disclosing information under sub-section (1), the chief shall make available information in his/her office to the Information Officer on a regular basis. (3) A public agency may, as required, make provision for an information section for the purpose of disclosing information. 7.

Procedure for Obtaining Information: (1) A Nepali citizen wishing to obtain any information under this Act shall submit an application to the concerned Information Officer stating the reason for needing to obtain such information. (2) If an application is received under sub-section (1), the Information Officer shall, if it is information of a nature that can be made available immediately, make it available immediately and, if it is information of a nature that cannot be made available immediately, make the information available to the applicant within fifteen days from the date of receipt of the application. (3) If information cannot be made available immediately under sub-section (2), the Information Officer shall immediately inform the applicant of the reason thereof. (4) Notwithstanding anything contained in sub-section (3), if the Information Officer has received a request for information relating to the safety of life or body of any person, such information shall be made available to the applicant within twenty-four hours of the request. (5) The Information Officer shall, as far as possible, make available the information requested by the applicant in the form requested. (6) Notwithstanding anything contained in sub-section (5), if making available the information in the form requested by the applicant is likely to damage, destroy, or impair the source of information, the Information Officer may state the reason thereof and make the information available to the applicant in an appropriate

form. (7) If a person has submitted an application under sub-section (1) for the purpose of studying or observing any writing, material, or work proceedings, the Information Officer shall provide the applicant with a reasonable time for the study or observation of such writing, material, or work proceedings. (8) If, upon examining an application received under sub-section (1), it appears that the information requested by the applicant is not related to his/her agency, the Information Officer shall immediately inform the applicant of that fact. 8. Fees Charged for Information: (1) While requesting information under Section 7, the applicant shall pay the prescribed fee to the concerned agency. Provided that if separate provisions for fees exist in the prevailing law concerning any information, it shall be as per that law. (2) While prescribing fees under sub-section (1), they shall be prescribed based on the actual cost incurred in making the information available. (3) If it appears that the fee prescribed under sub-section (2) is more than the cost, the concerned person may lodge a complaint with the Commission. (4) If, upon examining a complaint lodged under sub-section (3), it appears that the fee has been prescribed contrary to sub-section (2), the Commission may order a review of such fee. 9.

Right to Lodge Complaint: (1) If the Information Officer does not make information available, refuses to provide information, provides information partially, provides incorrect information, or denies information stating that the person is not a stakeholder, the concerned person may lodge a complaint with the Chief within seven days from the date of not receiving such information or receiving it partially. (2) If, upon examining a complaint received under sub-section (1), it appears that information was not provided, or was provided partially, or incorrect information was provided, the Chief shall order the Information Officer to make available the information as requested by the applicant, and upon such order, the Information Officer shall make the information available to the concerned applicant. (3) If, upon examining a complaint under sub-section (2), it appears that the Information Officer intentionally or mala fide did not provide information, refused to provide information, provided information partially, or provided incorrect information, the Chief may initiate departmental action against such Information Officer pursuant to the prevailing law. (4) If, upon examining a complaint under sub-section (2), it appears that the information cannot be provided, the Chief shall make a decision to that effect and inform the applicant of the decision along with the reason thereof. 10.

Right to Appeal: (1) A person aggrieved by the decision made by the Chief under sub-section (4) of Section 9 may appeal to the Commission within thirty-five days from the date of receiving notice of such decision. (2) While processing and adjudicating an appeal received under sub-section (1), the Commission may summon the concerned Chief or Information Officer to appear before it and take statements, require the production of any document, examine witnesses and evidence relating thereto, or request copies of any document from the public agency. (3) While processing and adjudicating an appeal under sub-section (2), the Commission may do the following: (a) If the grounds of appeal appear reasonable, order the concerned Chief to make information available to the appellant free of cost within a specified time limit, (b) If the appeal appears frivolous, dismiss the appeal. (4) The Commission shall undertake necessary proceedings and make a final decision regarding the appeal within sixty days of the filing of the appeal. (5) Other procedures to be followed by the Commission while processing appeals under this section shall be as prescribed. Chapter-3 Provisions Relating to the Commission 11.

Provision for Commission: (1) There shall be an independent National Information Commission for the purpose of protecting, promoting, and exercising the right to information. (2) The Commission shall consist of a Chief Information Commissioner and two other Information Commissioners. (3) There shall be a committee as follows to recommend candidates for appointment to the positions of Chief Information Commissioner and Information Commissioner: (a) Speaker ? Chairperson Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018). (b) Minister or Minister of State for

Communication and Information Technology ? Member (c) President, Nepal Federation of Journalists ? Member (4) The Government of Nepal shall appoint the Chief Information Commissioner and Information Commissioners on the recommendation of the committee under sub-section (3); while making such appointment, at least one woman shall be included. (5) The committee under sub-section (3) shall, as far as possible, follow the principle of inclusion while recommending candidates for appointment to the positions of Chief Information Commissioner and Information Commissioner. (6) The procedure to be followed while making recommendations for appointment under sub-section (3) shall be as determined by the recommendation committee itself. 12. Qualification: To be appointed to the position of Chief Information Commissioner or Information Commissioner, a person must possess the following qualifications: (a) A citizen of Nepal, (b) Having obtained at least a post-graduate degree from a recognized university, and (c) Having gained at least fifteen years of experience in the field of mass communication, law and justice, public administration, information technology, or management. 13. Disqualification: The following persons shall be disqualified from being appointed to the position of Chief Information Commissioner or Information Commissioner: (a) One who does not have the qualification under Section 12, (b) One who has been convicted by a court of a criminal offence involving moral turpitude, (c) A serving employee of a government or public institution, (d) One holding any political office, and (e) One who is disqualified for appointment under the prevailing law. 14. Term of Office: (1) The term of office of the Chief Information Commissioner and Information Commissioner shall be five years, and he/she shall not be eligible for reappointment to that position. (2) Notwithstanding anything contained in sub-section (1), subject to the term of office mentioned in that sub-section, an Information Commissioner may be appointed to the position of Chief Information Commissioner. (3) The recommendation committee under sub-section (3) of Section 11 shall make a recommendation for a new appointment at least one month before the expiry of the term of office of the Chief Information Commissioner and Information Commissioners of the Commission. 15.

Vacancy of Office: The office of Chief Information Commissioner or Information Commissioner shall be deemed vacant in the following circumstances: (a) Upon his/her death, (b) Upon his/her attaining the age of sixty-five years, (c) Upon his/her resignation submitted to the Prime Minister, (d) Upon the expiry of his/her term of office, (e) Upon his/her being convicted by a court of a criminal offence involving moral turpitude, or (f) Upon his/her removal from office under Section 16. 16. Removal from Office: If a proposal stating that it is not appropriate for the Chief Information Commissioner or Information Commissioner to remain in office due to lack of competence, bad conduct, or failure to honestly perform his/her official duties is passed by a two-thirds majority of a meeting of the committee of the Legislature-Parliament related to information and communication, attended by at least two-thirds of the total members of that committee, and such proposal is passed by a meeting of the Legislature-Parliament, the Chief Information Commissioner or Information Commissioner shall vacate the office. Provided that the Chief Information Commissioner or Information Commissioner against whom such accusation is made shall not be deprived of a reasonable opportunity to present his/her defense. 17. Provision Relating to Service Conditions: Provisions relating to remuneration, service conditions, and facilities of the Chief Information Commissioner and Information Commissioner shall be as prescribed. 18. Oath: Before assuming office, the Chief Information Commissioner shall take an oath before the Prime Minister, and the Information Commissioner shall take an oath before the Chief Information Commissioner, in the format as per the Schedule. 19. Functions, Duties, and Powers of the Commission: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Commission shall be as follows: (a) To study and observe records, documents, and other materials relating to information of public importance held in public agencies, (b) To order the listing and maintenance of information relating to records, documents, or other materials held in such agencies, (c) To

order the concerned public agency to make information public for the information of citizens, (d) To order the concerned public agency to provide information requested by an applicant, specifying a time limit, (e) To order the concerned party to comply with the duties under this Act, (f) To provide necessary suggestions or recommendations to the Government of Nepal and various bodies related to information and communication for the protection and promotion of the right to information, (g) To issue any other appropriate order necessary for the protection, promotion, and exercise of the right to information. 20.

Delegation of Powers: The Commission may delegate any of its functions, duties, and powers, other than the power to process and adjudicate appeals under Section 9, to the Chief Information Commissioner, Information Commissioner, or any body or officer to exercise and perform, subject to prescribed conditions.

21. Office of the Commission: The central office of the Commission shall be located in the Kathmandu Valley, and the Commission may open its offices in various places in Nepal as required.

22. Employees of the Commission: (1) There shall be a necessary number of employees in the Commission. (2) The Government of Nepal shall provide the necessary employees for the Commission.

23. Expenses of the Commission: (1) The Government of Nepal shall make arrangements for the necessary expenses of the Commission. (2) The Commission may also obtain financial resources required for it from other sources with prior approval of the Government of Nepal.

24. Obligation to Assist the Commission: Public agencies shall assist the work proceedings of the Commission.

25. Annual Report: (1) The Commission shall submit an annual report of its work proceedings every year to the Legislature-Parliament through the Prime Minister. (2) The Commission shall publish the report under sub-section (1) publicly for the information of the general public.

26. Liaison with the Government of Nepal: The Commission shall liaise with the Government of Nepal through the Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018). Ministry of Communication and Information Technology. Chapter-4 Provisions Relating to Protection of Information 27.

Provision Relating to Classification of Information: (1) For the purpose of protecting information related to sub-section (3) of Section 3 held in public agencies, there shall be a committee as follows to classify information policy-wise: (a) Chief Secretary of the Government of Nepal ? Chairperson (b) Secretary of the concerned Ministry ? Member (c) Office Chief or expert on the concerned subject designated by the Chairperson ? Member (2) The committee under sub-section (1) shall, for the purpose of classifying information, determine specific criteria including the period for which information related to sub-section (3) of Section 3 must be kept confidential and the method of protection, and shall inform the Commission accordingly. (3) A person aggrieved by the classification made by the committee under sub-section (2) may submit an application to the Commission for review, stating that such information should be made public. (4) Upon reviewing the application submitted under sub-section (3), if the Commission finds that such information does not need to be kept confidential, it shall order its disclosure. (5) Information classified under sub-section (2) may be kept confidential for a maximum period of up to thirty years according to the nature of such information. (6) Notwithstanding anything contained in sub-section (5), the committee shall review every ten years whether information kept confidential needs to remain confidential or not. (7) Upon reviewing under sub-section (6), if such information needs to be kept confidential for an additional period, it may be classified to remain confidential by stating the period for which it must be kept confidential, and if it does not need to be kept confidential, it may be classified accordingly. **28. Protection of Information:** (1) A public agency shall protect the information of a personal nature held by it from unauthorized publication and dissemination. (2) Personal information held in a public agency shall not be used without the written consent of the concerned person except in the following circumstances: (a) In relation to averting a serious threat to the life of any person or the health or safety of the general public, (b) If it is a matter that must be disclosed under the

prevailing law, (c) In relation to corruption control. 29.

Protection of Whistleblower: (1) It shall be the duty of an employee of the concerned public agency to provide information about corruption, irregularities, and any act considered an offence under the prevailing law that has occurred, is occurring, or may occur in a public agency. (2) It shall be the duty of the recipient of the information to keep the identity of the whistleblower providing information under sub-section (1) confidential. (3) The whistleblower shall not be dismissed from office, subjected to punishment imposing any kind of legal liability, or caused loss or damage due to providing information under sub-section (1). (4) If the whistleblower is punished or caused loss or damage contrary to sub-section (3), the whistleblower may lodge a complaint with the Commission, seeking the annulment of that decision and claiming compensation. (5) If, upon examining a complaint lodged under sub-section (4), the Commission finds that the whistleblower was dismissed, it may order the annulment of that decision and also order compensation if the whistleblower has suffered any loss. 30. Making Personal Information Available: (1) If a person, while holding office in a public agency, requests information on a subject relating to the public position, such agency shall make the information available to the concerned person as requested. (2) If a stakeholder person requests information held in a public agency relating to himself/herself, such information shall be made available to him/her. (3) The procedure for requesting and obtaining information under sub-section (1) shall be as mentioned in Section 7. (4) While obtaining information under sub-section (1), the fee under Section 8 shall apply. 31. Prohibition on Misuse of Information: (1) No person shall misuse information obtained from a public agency by not using it for the purpose for which it was obtained. (2) If a person misuses information contrary to sub-section (1), the concerned public agency may lodge a complaint with the Commission in that regard. Chapter-5 Provisions Relating to Punishment and Compensation 32.

Punishment: (1) If the Chief or Information Officer of a public agency is found to have, without reasonable cause, not provided or refused to provide information, provided information partially or incorrectly, or destroyed information, the Commission may impose a fine of one thousand to twenty-five thousand rupees on such Chief or Information Officer and, if such Chief or Information Officer holds a position subject to departmental action, may send a letter to the concerned agency for departmental action against him/her. (2) If the Chief or Information Officer of a public agency delays in providing information that should be provided on time, without cause, he/she shall be fined at the rate of two hundred rupees for each day of delay. (3) If a letter is received from the Commission for departmental action under sub-section (1), the public agency shall take departmental action against such Chief or Information Officer within three months and inform the Commission thereof. (4) If a person is found to have misused information obtained from a public agency by not using it for the purpose for which it was obtained, the Commission may, considering the seriousness of the misuse, impose a fine of five thousand to twenty-five thousand rupees on such person. (5) The Commission may impose a fine of up to ten thousand rupees on a person who fails to comply with a decision made or order given by the Commission under this Act. 33. Compensation: (1) If any person suffers loss or damage due to the failure of the Chief or Information Officer of a public agency to provide information under this Act, refusal to provide information, providing information partially or incorrectly, or destruction of information, such person may submit an application for compensation to the Commission within three months from the date of not receiving information, receiving it partially or incorrectly, or the destruction of information. (2) If, upon examining the application received under sub-section (1), it appears reasonable, the Commission may, considering the actual loss or damage suffered by the applicant, order the concerned agency to pay reasonable compensation. 34. Appeal: A person aggrieved by a decision made by the Commission under Section 32 may appeal to the High Court within thirty-five days from the date of receiving notice of such decision. Chapter-6 Miscellaneous 35.

Correction of Information: (1) If a person believes that information on any subject held in a public agency is incorrect, such person may submit an application to the concerned Chief with necessary evidence for the correction of such information. (2) If an application is received under sub-section (1), the Chief shall make necessary inquiries in that regard, and if, upon making such inquiries, it appears that the information held in his/her agency is incorrect, he/she shall correct such information within seven days of the application and inform the applicant thereof. 36. Defense for Work Done in Good Faith: Notwithstanding anything contained elsewhere in this Act, no legal proceedings shall be instituted against, and no punishment shall be imposed on, the Chief or Information Officer in relation to any work or proceeding done in good faith concerning the disclosure of information. 37. Matters to be Governed by this Act: Matters mentioned in this Act shall be governed by this Act, and other matters shall be governed by the prevailing law. 38. Power to Make Rules: The Government of Nepal may, in consultation with the Commission, make necessary rules for implementing the objectives of this Act. Schedule (Relating to Section 18) Oath I, , do hereby solemnly promise / swear in the name of God that, being fully loyal to the country and the people, remaining faithful to the Constitution and laws of the country with high respect for the sentiment expressed by the people through the people's movement that the state power and sovereignty of Nepal shall be vested solely in the Nepali people, I shall be active in the effective promotion and implementation of the law relating to the right to information, respecting the right of citizens to be well-informed, without being influenced by anyone's fear, favoritism, prejudice, enmity, or greed, in the performance of the responsibilities and duties of the office of Chief Information Commissioner/Information Commissioner that I have assumed. Date: - Signature